

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARCHELO OLIVER SMITH f/k/a RICHARD
ALBINO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DANNY CHAN- Shield # 15201, POLICE SERGEANT
WILLIAM KONG-Shield # 4164, POLICE OFFICER
BRYAN ARENA-Shield # 3834, POLICE OFFICER
FELTON and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER DANNY CHAN- Shield #
15201
c/o New York City Police Department- 71st
Precinct
421 Empire Boulevard
Brooklyn, New York 11225

POLICE SERGEANT WILLIAM KONG-Shield #
4164
c/o New York City Police Department- 71st
Precinct
421 Empire Boulevard
Brooklyn, New York 11225

Index #

Date of filing:

Plaintiff designates Kings
County as the place of trial

Basis of the venue is the Locus
of Occurrence

SUMMONS

Plaintiff resides at
1192 Brooklyn Avenue
Brooklyn, New York 11203

County of Kings

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

Defendant's address:

POLICE OFFICER BRYAN ARENA-Shield #
3834

c/o New York City Police Department- 71st
Precinct

421 Empire Boulevard
Brooklyn, New York 11225

POLICE OFFICER FELTON

c/o New York City Police Department- 71st
Precinct

421 Empire Boulevard
Brooklyn, New York 11225

Dated: Brooklyn, New York
May 25, 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MARCHELO OLIVER SMITH f/k/a RICHARD
ALBINO,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DANNY CHAN- Shield # 15201, POLICE SERGEANT
WILLIAM KONG-Shield # 4164, POLICE OFFICER
BRYAN ARENA-Shield # 3834, POLICE OFFICER
FELTON and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

-----X

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST ON
BEHALF OF MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 29, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that

thereafter, and within the time provided by law, this action was commenced.

5. That on November 30, 2016, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on July 5, 2016, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG-Shield 4164, POLICE OFFICER BRYAN ARENA-Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on July 5, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, was lawfully present at the premises known as the Kings County Hospital, located at 451 Clarkson Avenue, County of Kings, City and State of New York.

8. That on July 5, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, was falsely arrested by defendants, POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG-Shield 4164, POLICE OFFICER BRYAN ARENA-Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on July 5, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on July 5, 2016, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG-Shield 4164, POLICE OFFICER BRYAN ARENA-Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, who falsely arrested the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD

ALBINO, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK.

11. That on July 5, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

12. That as a result of the aforesaid false arrest and confinement, plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

13. By the reason of the foregoing, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF MARCHELO OLIVER
SMITH f/k/a RICHARD ALBINO**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG-Shield 4164, POLICE OFFICER BRYAN ARENA-Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, who violated the civil rights of the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG-Shield 4164, POLICE OFFICER BRYAN ARENA-Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE IMPRISONMENT
ON BEHALF OF MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on July 5, 2016 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG-Shield 4164, POLICE OFFICER BRYAN ARENA-Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO.

20. That the defendants, POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG-Shield 4164, POLICE OFFICER BRYAN ARENA-Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

21. By the reason of the foregoing, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO**

22. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "21" inclusive with the same force and effect as if more fully set forth at length herein.

23. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG- Shield 4164, POLICE OFFICER BRYAN ARENA- Shield # 3834, POLICE OFFICER FELTON and JOHN DOES- Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

24. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO.

25. That as a result of said intentional and negligent acts, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

26. By reason of the foregoing, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION
ON BEHALF OF MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG- Shield 4164, POLICE OFFICER BRYAN ARENA- Shield # 3834, POLICE OFFICER FELTON and JOHN DOES- Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, falsely arrested and falsely imprisoned the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG- Shield 4164, POLICE OFFICER BRYAN ARENA- Shield # 3834, POLICE OFFICER FELTON and JOHN DOES- Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

30. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

31. That the false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

32. That the deprivation by the defendants of plaintiff's civil rights was a result of the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG- Shield 4164, POLICE OFFICER BRYAN ARENA- Shield # 3834, POLICE OFFICER FELTON and JOHN

DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of the defendant, THE CITY OF NEW YORK.

33. That the defendants' actions were not privileged or immune.

34. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DANNY CHAN- Shield # 15201, POLICE SERGEANT WILLIAM KONG- Shield 4164, POLICE OFFICER BRYAN ARENA- Shield # 3834, POLICE OFFICER FELTON and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

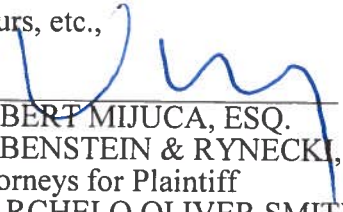
35. By the reason of the foregoing, the plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, demands judgment both compensatory and

exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
May 25, 2017

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
MARCHELO OLIVER SMITH
f/k/a RICHARD ALBINO
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 16RA07-05

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

MARCHELO OLIVER SMITH f/k/a RICHARD ALBINO, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



MARCHELO OLIVER SMITH f/k/a
RICHARD ALBINO

Sworn to before me this 25th
day of May 2017


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 19